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|   |                                                               | <p>as a matter of law for adding it. “ “ “Gross negligence” long has been defined in California and other jurisdictions as either a “ “ “want of even scant care” or “an extreme departure from the ordinary standard of conduct.” ’ ’ [Citations.] [Citations.] Gross negligence is a subspecies of negligence; it is not a separate tort.” (Joshi v. Fitness International, LLC (2022) 80 Cal.App.5th 814, 825.) Moreover, when the court denied Defendant’s first motion for summary judgment, and specifically, its motion for summary adjudication on Issue 1 (no triable issue as to 1st cause of action for negligence pursuant to the express waiver and as a complete defense to ordinary negligence) on the ground that there is a triable issue of material fact as to gross negligence with respect to Defendant’s management of the sauna [ROA 193], it determined that the 1st cause of action for negligence embraces a claim for gross negligence. Plaintiffs’ motion admits this much, and they essentially had no response to Defendant’s assertion that gross negligence is not a separate cause of action.</p> <p>Two, denying without prejudice will allow Plaintiffs to clean up the proposed FAC to just add the factual allegations to the already existing negligence cause of action, as well as the punitive damages allegations and prayer, and comply with CRC 3.1324.</p> <p>Defendant to give notice of ruling.</p> |
| 8 | 30-2022-01183025<br><br>SPAIN vs.<br>CHAPARRAL BOATS,<br>INC. | <p><b>Motion to Compel Deposition (Oral or Written)</b></p> <p>Plaintiff’s Motion to Compel the Deposition of Defendant Chaparral Boats, Inc.’s (Chaparral) Person Most Qualified is DENIED as moot.</p> <p>Plaintiff filed the motion on 7/27/23. Plaintiff moves to compel the deposition of Chaparral’s person most qualified under Code of Civil Procedure section 2025.230, which states:</p> <p>“If the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.”</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

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|   |                                                          | <p>On 10/16/23, Plaintiff voluntarily dismissed Chaparral with prejudice. Therefore, the motion appears to be moot.</p> <p>Moreover, to the extent Plaintiff still intends to conduct a deposition of Chaparral's person most qualified, Plaintiff must now serve a subpoena for deposition testimony to Chaparral because Chaparral is no longer a party to the action. (Code Civ. Proc. § 2025.280(a)-(b) [deposition notice effective to require party to appear for deposition, but testimony of nonparty deponent requires deposition subpoena].)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 9 | 30-2022-01262550<br><br>Portfolioiq vs. Tradability, LLC | <p><b>Motion for Leave to Intervene</b></p> <p>The Motion to Intervene by Proposed Plaintiffs in Intervention Tracy Kinder and Roxanna Guinan (Movants) is DENIED.</p> <p>Movants' Request for Judicial Notice of the complaint in <i>Kinder v. Gallant</i>, OCSC No. 2022-01282519 (<i>Kinder</i> case) is granted. Defendants Diallo and Tradability's Request for Judicial Notice of the Complaint, Cross-Complaint, and 5/12/23 Order in the <i>Kinder</i> case is also granted.</p> <p>Code of Civil Procedure section 387 provides for mandatory and permissive intervention. Section 387, subdivision (d)(1) states the requirements for mandatory intervention:</p> <p>“(d)(1) The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied:<br/> (A) A provision of law confers an unconditional right to intervene.<br/> (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.”</p> <p>Section 387, subdivision (d)(2) provides for permissive intervention:</p> <p>“(2) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.”</p> |